



REPORT BY MEMBER STATES ON THE IMPLEMENTATION OF THE

1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

June 30

2020

The Report captures the efforts made by Botswana in realizing the right to education with emphasis on the legal obligations and measures put in place to ensure equitable access to inclusive education and promotion of equality of treatment in education. It also addresses measures put in place to ensure elimination of inequalities in allocating educational opportunities related to access, participation and learning outcomes at all levels. In this assessment of the implementation of the right to education in Botswana, we have managed to highlight some of the successes and challenges experienced. We believe in our understanding of the challenges experienced, we will be able to devise relevant and effective measures to address such challenges.

GENERAL INFORMATION:

Country name: Botswana

Organization or entity responsible for the preparation of the report: Botswana National Commission for UNESCO

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention**

Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

☒ *the obstacles, whether legal, institutional, political or practical*

☐ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

Though Botswana has not ratified the convention, she has enacted legislature, regulations, policies and programmes which guarantee compliance to the 1960 Convention and Recommendation against Discrimination in Education.

☐ No, not considering ratification in the near future. Please explain why:

2. Ratification of the Protocol instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

The country has not ratified the Convention and discussion are currently ongoing to determine the country's position.

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☒ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Legislative measures pursuant to the Recommendation

Botswana has not ratified the Convention and Recommendations against Discrimination in Education. However, a number of measures have been put in place to ensure no person undergoes any form of discrimination in education. The measures as indicated below include legislative, policy and programmes that are in line with the provisions of the Convention:

Legislative measures pursuant to the Recommendation

1. *The Constitution of Botswana is the guiding principle under which all the national policies are developed and must comply with. It aligns directly to the provisions of the Convention through its Chapter II which covers in detail issues of ‘Protection of Fundamental Rights and Freedoms of the Individual’. Among the list of the fundamental rights and freedoms of the individual, that the constitution covers is the ‘Protection from Discrimination on the grounds of race, place of origin, political opinion, colour, creed or sex, but subject for the rights and freedoms of others’.*

2. ***The Education Act***

It guides the provision of education in Botswana and sets out clear condition under which education must be provided. Under such conditions, there are no signs of discrimination that are either alluded or implied. It describes a pupil as “a person of any age for whom education is provided ...” cap 58.62, Section 2. It also stipulates enrolment age into primary (from 6 to 9 years) CAP 58.76, Section 4 (2a) and (2b) and clear enrolment age at secondary (19 years or below) CAP 58.62, Section 7 (2). Despite the stipulated enrolment ages into the different levels of basic education, the Education Act has provision for late enrolment into primary CAP 58.77, Section 5. This is to ensure that no child is discriminated against education due to age.

It also ensures monitoring of enrolments and school attendance through the Admission and Attendance Registers, CAP 58.10, Section 20 (1a to 1c). In addition, the Education Act also ensures strict monitoring of expulsion and withdrawal cases through CAP 58.78, Section 11 – 15. This is to ensure no child is denied the opportunity to benefit from education due to any dubious practices. In cases where learners were withdrawn from school, the Education Act CAP 58.80, Section 15 (2) ensures opportunities for readmission following withdrawal.

3. ***The 2009 Children’s Act***

The Children’s Act CAP 28:04 of 2009 is a policy document that ensures protection of the rights of the child. Among other basic children’s rights, the Children’s Act of 2009 takes into account the right to free basic education and as such, put in place penalties for denying children their right to education (CAP 28:04, Part III Section 18.1 and 2).

Furthermore, the Children’s Act has been given priority over other Acts of law that may be seen to be in conflict or inconsistency with its provisions except where the Act is seen to be detrimental to the child in any manner (CAP 28:04, Part II Section 3). This alone is a notable development towards the prevention of any child from any form of discrimination in education as it sets punitive measures to be put in place in the event a child is denied their right to free basic education.

- **Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.**

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

Public policies and programmes in line with the provisions of the Convention

1. ***Inclusive Education Policy***

The provisions of the Inclusive Education Policy aligns to the recommendations of the Convention as it provides guidance towards achievement of an inclusive education system. The policy calls for an education system in which children, the youth and adults are given equal access to relevant quality education which enables them to learn effectively irrespective of their differences in gender, age, life circumstances, health, disability, developmental stages, capacity to learn or socioeconomic circumstances.

2. **Revised Remote Area Development Programme**

The programme enables children from Rural Area Dwellers Settlements (RADS) to continue accessing education by providing them with the support they need in the form of school related fees, uniforms and transport.

3. **Policy on Shared Use of Resources**

The policy acknowledges out of school education as an important form of education that needs to be supported at all costs as it empowers people to be self-sufficient through literacy and skills development. Through this policy, government ministries, parastatals, private sector and non-governmental organizations are encouraged to optimise their use of resources by availing them for use by out of school learners.

4. **The Revised National Policy on Education (1994)**

The goal of the Revised National Policy on Education is to prepare Botswana for a transition from a traditional agro – based economy to an industrial economy in order to be able to compete with other countries of the world. The main objectives of this policy are to raise educational standards at all levels; to emphasize science and technology in the education system; to make further education and training more relevant and available to more people; to improve partnerships between schools and communities in the development of education; to provide lifelong education to all sections of the population; to assume more effective control of the examination mechanism in order to ensure that the broad objectives of the curriculum are realized; and to achieve efficiency in educational development.

5. **National Policy on Vocational Education and Training**

The National Policy on Vocational Education and Training lays down the broad framework, within which training activities in the country are carried out. The scope of the policy, covers skills training, both formal and non-formal; life-long training as an integral part of overall human resource development; public institutional training, employer-based training, and the private training institutions; training for both the formal and informal sectors of the economy including self-employment.

6. **Tertiary Education Policy (2008)**

The overall goal of the policy is to achieve sustainable social and economic development, uplift the standard and quality of life of Batswana, to increase access to tertiary education and to expand the country's capacity for research and innovation. It is to meet the long term national and global challenges through the development of a tertiary education system that is relevant, dynamic, accessible, equitable and internationally competitive.

II. **Information on the implementation of the Convention or Recommendation**

1. **Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)**

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply) (several items could be ticked/mentioned):

- | | |
|---|--|
| ✓ | Constitutional laws and/or legislation prohibit discrimination in education |
| ✓ | Regulations prohibit discrimination in education |
| ✓ | Policies and programmes aim to eliminate and prevent discrimination in education |

- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of pupils to educational institutions*
- *Non-differential treatment, including of foreign nationals resident in your country*

1. Non-discrimination in education

1.1 In Botswana, education is regarded as a fundamental human right that is also an enabler for improving the socio economics lives of people and lead them to living dignified lives. Discrimination in education which according to Botswana's context, is based on the grounds specified in the convection is fully outlawed. The measures below have been put in place to ensure that no one, irrespective of their differences, is denied to opportunity to benefit from education.

List of principal national laws and regulations

REFERENCE	DATE ADOPTED	AIMS
<i>Policy Guidelines on Shared Use of Resources – Recommendation 77 of the Revised National Policy on Education</i>	<i>November 2004</i>	<i>To strengthen and promote the role of lifelong learning in individuals, communities and national development by giving expression to the constitutional right of all citizens to have learning opportunities.</i>
<i>Pregnancy Policy Guidelines for the Ministry of Education</i>	<i>Republic of Botswana Education Regulations (1978)</i>	<i>To have a coordinated system of addressing school dropouts due pregnancy and to ensure that no learner is denied the opportunity to benefit from education due to pregnancy.</i>
<i>Inclusive Education Policy</i>	<i>September 2011</i>	<i>To promote the principle that every individual has the potential to learn and to accord them their human and educational rights through full inclusion in education irrespective of their differences.</i>
<i>Children's Act, CAP. 28:04</i>	<i>1989</i>	<i>To domesticate the United Nations Convention on the Rights of the Child and to ensure protection of the rights of the child irrespective of their differences.</i>
<i>Revised Remote Area Development Programme</i>	<i>2009</i>	<i>To accord all individuals the right to a dignified life by improving the socio-economic status of people living in Remote Area Dweller Settlements (RADS) and addressing the hindrances denying children from (RADS) the opportunity to access education.</i>
<i>National Policy on Open and Distance Learning</i>	<i>2013</i>	<i>To provide an alternative approach to education that gives opportunity for learners who cannot access education through formal modes to access it through inclusive open and distance learning modes.</i>
<i>Guidelines on the Management of the School Feeding Programme</i>	<i>1990</i>	<i>To encourage full participation in education irrespective of economic and social status through provision of a balanced meal for each school day.</i>

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- | | |
|---|--|
| ✓ | Constitutional laws and/or legislation guarantee equal access to education |
| ✓ | Regulations ensure equal access to all levels and types of education |
| ✓ | Policies and programmes ensure equal access to all levels and types of education |
| ✓ | Other: |

An affirmative action to increase access for OVCs and learners with disabilities into tertiary education. While the entry requirement for other learners into tertiary is 36 points, government sponsored OVCs and learners with disabilities into tertiary education with 31 points and 30 upon recommendation from other service providers.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

Measures adopted to guarantee equal access to education:

- *The Education Act CAP 58.76, Section 4 (2a) and (2b) regulates school admissions through the setting of clear admission age into primary (from 6 to 9 years) and enrolment age at secondary (19 years or below) CAP 58.62, Section 7 (2). Despite the stipulated enrolment ages into the different levels of basic education, the Education Act has provision for opportunities for late enrolment into primary (CAP 58.77, Section 5). This is to ensure that no child is discriminated against education due to age.*
- *Furthermore, admission guidelines have been developed to ensure equal access to education. The guidelines provide a standard procedure for admission of learners at all levels including procedures for readmissions following drop-out.*
- *Both local and foreign students are accorded equal access to any school of their choice in the country and parents are free to register their children in any school whether government or private at any time of their children's schooling.*

Concrete actions taken by the government of the Republic of Botswana to guarantee equal access to all level of education in your country

- *At primary level all learners are enrolled without any pre-test, all learners undergo a six weeks orientation prior to their standard one.*
- *The transition to Form 1 is automatic; the performance in the Primary School Leaving Examination does not bar learners from enrolling into form 1. However, learners can repeat standard seven with the consent of the parents if the parent strongly feels that if given a chance the learner will do better.*
- *To transit to form 5 learners are given a standard examination that is used for screening for enrolment into tertiary education levels.*
- *Students from remote areas have an advantage of lowered grades for admission at tertiary as compared to other learners to increase the level at which they benefit from education.*
- *At tertiary level students are assisted with sponsorship and leaving allowance throughout their training.*
- *In order to ensure equal opportunities in education, the ICT and Media Services is:*
 - *Providing computers with the latest specification to junior and senior secondary schools.*
 - *Upgrading of LAN and Expansion of Bandwidth to schools to enable research and downloading of several multimedia learning support materials and software.*
 - *Connection of Wi-Fi networks to schools to allow the use of different ICT gargets and downloading of software to improve variation of accessible materials.*

This notably is covered under SDG target 4.1 and partly target 4.b

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- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

√	Providing financial incentives and fellowships	√	Adapting education infrastructure
√	Providing positive or affirmative action measures	√	Adapting curricula and methods
√	Ensuring inclusion in mainstream schools for all learners with disabilities	√	Providing language classes to newcomers (e.g. refugees)
√	Training teachers on inclusive education	√	Eliminating administrative barriers to education ⁷
√	Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)	√	Providing flexible learning pathways
√	Providing re-entry programmes for young mothers	√	Valuing diversity in schools
√	Eliminating all barriers for pregnant girls or young mothers in education	√	Combatting stereotyping and stigmatization
√	Providing auxiliary assistance		

Other:

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- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

In order to ensure equality of educational opportunities, gender and child labour are mainstreamed into educational policies and programmes. As a result of this mainstreaming, Botswana has almost reached parity in terms of access to educational services. Table below shows that male constituted 51.1% of total primary education enrolment in 2015 while female enrolment constituted 48.9%. The Gender Parity Index (GPI) for participation in primary education is 0.96 in 2015, indicating almost equal access to primary education by both boys and girls.

Primary School Enrolments by year and gender

Year	Enrolment by Number		Total	Enrolment by Percentage	
	Boys	Girls		Boys	Girls
2007	167396	160934	328330	51.0	49.0
2008	167608	160568	328176	51.1	48.9
2009	169483	161242	330725	51.2	48.8
2010	169536	161640	331176	51.2	48.8
2011	170221	162661	332882	51.1	48.9
2012	171323	164507	335830	51.0	49.0
2013	174076	166101	340177	51.2	48.8
2014	174715	165985	340700	51.3	48.7
2015	176246	168355	344601	51.1	48.9

Source: Botswana 2015

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

Please provide reference to the relevant laws and provisions:

Botswana Marriage Act of 2001

The minimum age for marriage in Botswana as per the Botswana's Marriage Act of 2001 (CAP29.01) is 21 years. Article 15 on consent to marriage by minors indicate that,

No minor or person below the age of 21 years not being a widower or widow may marry without the consent in writing of his or her parents or guardians:

Provided that—

(i) where such consent is given by one parent but refused by the other parent, the minor may apply to a magistrates' court, in the administrative district in which such minor resides, or to the High Court, for consent to the marriage and such minor shall not, for purposes of such application, require the legal assistance of his or her legal guardian; (5)

Children's Act of 2009

Similarly, Article 62.1 provides protection of children against,

...social, cultural and religious practices which are detrimental to their wellbeing. Among practices which are listed, include forced marriages, child betrothal, and genital mutilation of female circumcision or any other cultural rite, custom or tradition which may inflict physical, emotional or psychological pain or harm to the child..." (p.A75-76)

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐	Pre-primary education is compulsory: Please provide the age of enrolment and duration:
<i>Pre – Primary education is NOT compulsory in Botswana.</i> <i>Age of Enrolment into pre-primary is from 4 – 5 years while day care services are provided from 0-6 years in private institutions</i> <i>Pre-primary education runs for 1 year for public schools.</i>	
☐	Pre-primary education is free of charge for all: Please provide the duration:
<i>Pre – primary is FREE at Public and some community and faith based institutions while in private institutions, it comes at a cost and it runs for the duration of 1 year</i>	

Early Childhood Development (ECD)

Early Childhood Education (ECD) is a fundamental aspect of education that boost children's overall development and prepares for their active participation in learning. In Botswana ECD is not accessible for all the eligible children. Over the years it has become apparent that there is a need to focus more on access to quality pre-primary education. It has been proven that once a child get the foundation right, then the subsequent levels of education become easy to deal with. The government of Botswana has made commitment to introduce the ECD programme in public schools. This is being introduced on a gradual bases and is not yet available in all the schools. The public schools are also not available in all the areas which leaves a number of children not accessing the programme especially those in remote areas.

Considering the benefits of ECD in preparing children for academic participation and their future integration into the community, the Government of Botswana conducted a pilot of pre-school education in six (6) government primary schools in 2013 and rolled out the programme to at least 80% of schools in phases from 2014. To date, pre-school education has been rolled-out to 613 out of 755 public primary schools.

As per the table below, enrolments in pre-primary education in 2019 stood at 42,440. From this total, 20,772 (48.9%) constituted males while 21,668 (51.1%) constituted females, which indicates that Botswana has achieved gender parity in pre-primary education (Ministry of Basic Education, 2019).

2019 Pre-primary Schools Enrolments (ages from 0-6)

District	No. of Centres	No. Council	No. Church	No. Community	No. VDC	No. NGO	No. Private	No. Enrolled Boys	No. Enrolled Girls	Total Enrolment
Kweneng	154	0	8	1	2	6	137	3147	3227	6374
Sowa Town	4	1	0	0	1	0	2	103	100	203
Chobe	8	0	0	1	0	0	7	154	131	285
Kgalagadi	21	1	1	0	7	0	12	290	275	565
North-east	43	1	2	0	19	2	19	720	773	1493
Lobatse	23	5	2	0	0	1	15	534	569	1103
Francistown	68	0	6	2	0	6	54	1486	1863	3349
Kgatleng	34	0	2	1	1	2	28	566	593	1159
Ghanzi	30	1	2	0	12	3	8	576	590	1166
Jwaneng	14	2	1	0	0	1	10	428	464	892
Southern	73	1	5	1	4	3	53	1201	1136	2337
North-west	130	0	5	1	16	2	39	2432	2480	1093
Central	143	1	9	9	3	10	111	3524	3498	7184
South East	38	4	1	1	0	2	30	1146	1245	2391
S/Phikwe	27	1	2	0	0	2	22	612	682	1294
Gaborone	122	1	5	0	3	8	96	3853	4042	8023
TOTAL	932	19	51	17	68	48	643	20772	21668	42 440

Figure 1. 2019 Pre-primary School Enrolments (ages 0-6)

Source: Ministry of Basic Education (2019) Unpublished

Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

1. Laws

Education Act
Children's Act 2009

2. Policies

Early Childhood Care and Education Policy 2001
Revised National Policy on Education 1994
National ICT Policy ThutoNet Chapter 2007

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☐ Yes ☒ No

Though compulsory basic education is implied in the Children’s Act for 2009, enforcement is still not enacted.

Please indicate the current duration period of compulsory education and the age of enrolment:

Duration: Standard 1 to Standard 7 = 7 years

Age of Enrolment: 6 years

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Botswana has been able to maintain over 85% Net Enrolment Rates for years now but the challenges experienced in realizing universal access to primary education is inability to retain all the learners enrolled into the system due to drop-out whose major cause is truancy. Another serious challenge is lack of up to date data to guide educational planning.

Primary School Gross and Net Enrolment Ratios (GER and NER) by Year

Year	GER (6 - 12 Years) %	NER (6 - 12 Years) %	GER (7 - 13 Years) %	NER (7 - 13 Years) %
2006	112.2	89.2	113.6	96.8
2007	109.4	86.9	111.5	94.9
2008	107.7	85.4	109.8	92.9
2009	108.4	85.8	109.8	91.8
2010	109.5	87.1	108.8	90.8
2011	112.7	90.6	98.6	88.4
2012	111	93.1	98.7	86
2013	110.8	93	112	94.7
2014	111.1	94.2	98.8	87.5
2015	110.2	94.7	112.8	95.6

Source: Statistics Botswana 2015

Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

Primary Education is FREE of CHARGE to ALL for all the 7 years (Standard 1 to Standard 7) but only in public schools while in private schools where enrolment is by choice, primary education comes at cost. However, able parents of children enrolled in public schools are expected to cover the cost of school uniform while OVC are provided with uniform as part of their social support.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Education Act 1966,
Children's Act 2009,
Revised National Policy on Education 1994
Botswana Vision 2016 and Vision 2036
Affirmative Action for Vulnerable Groups

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☒ Yes ☐ No

Please briefly provide information on the reforms taken:

The Government of the Republic of Botswana has long been providing its people with free quality and equitable primary education even before commitment to Education For All Goals was made in 1990. This commitment was further emphasized by the Revised National Policy on Education (RNPE) of 1994 which states that access to basic education is a fundamental human right. The national vision, Vision 2036 has committed to increase access to compulsory quality education and provision of lifelong learning and training opportunities while the National Development Plan 11(2017 – 2023) has place more emphasis on employing strategies to ensure the inclusiveness of the education system. Some of the strategies leading to high access rates include:

Achievement of Gender Parity

The Gender Parity Index (GPI) for participation in primary education is 0.96 in 2015, indicating almost equal access to primary education by both boys and girls.

Provision of compulsory and free primary education in your country

Despite its enormous investment in education, the Government of the Republic of Botswana has not yet introduced compulsory basic education. However, tremendous developments have been made in terms of setting the ground for compulsory basic education which includes the development of the Children's Act CAP 28:04 of 2009 as a piece of legislature to ensure protection of the rights of the child. Among other basic children's rights, the Children's Act of 2009 takes into account the right to free basic education and as such, put in place penalties for denying children their right to education (CAP 28:04, Part III Section 18.1 and 2).

Furthermore, the Children's Act has been given priority over other Acts of law that may be in conflict or inconsistency with its provisions except where a particular provision of the Act may seem to be detrimental to the child in any manner (CAP 28:04, Part II Section 3. This alone is a notable development towards the introduction and implementation of compulsory education especially that, the current Education Act does not have any provision for compulsory education.

However, there is still a need to develop guidelines for the introduction and enforcement of compulsory basic education as initiated by Children's Act. Such guidelines will assists stakeholders with the relevant procedures to be followed to ensure enrolment of children of school going age who are not within the system and prosecution of all those who will deny children their right to education.

Difficulties Experienced in the Realization of Universal Access to Free and Compulsory Primary Education

- *High dropout rates, most specifically for learners in remote areas.*
- *Long distances to schools.*
- *Delays in the enforcement of compulsory education.*
- *Overstay of learners with intellectual disability in special schools.*

- Lack of transport to follow children with poor attendance and those who dropped out of school.
- Inadequate parental support due to religious and cultural beliefs that are against education

Primary School Drop-Outs by Reason and Standard								
	STD 1	STD 2	STD 3	STD 4	STD 5	STD 6	STD 7	Total
<i>Fees</i>	22	14	12	7	9	5	1	70
<i>Expulsion</i>	0	0	0	0	0	0	0	0
<i>Illness</i>	44	12	12	10	9	10	13	110
<i>Marriage</i>	0	0	1	1	0	1	0	3
<i>Pregnancy</i>	0	1	0	0	4	8	12	25
<i>Bullying</i>	3	5	5	6	3	8	4	34
<i>Truancy</i>	409	199	194	263	266	280	194	1805
<i>Substance Abuse</i>	0	0	0	1	2	6	5	14
<i>Poor Performance</i>	1	0	2	1	0	0	5	9
<i>Parents Abuse</i>	5	2	2	1	2	0	3	15
<i>Corporal Punishment</i>	1	1	0	3	0	1	0	6
<i>Teacher Abuse</i>	0	0	0	0	0	0	0	0
<i>Child Labour</i>	0	3	4	1	0	1	1	10
<i>Religion</i>	4	3	6	4	3	4	3	27
<i>Other</i>	106	72	67	45	54	70	26	440
Total	595	312	305	343	352	394	267	2568

Source: Statistics Botswana 2015

The Government has also created opportunities for children who have dropped out of school to be re-enrolled into the system so that they too benefit from education. Below is a table indicating primary school re-entrants for the year 2015 only.

Primary School Re-Entrants by Reason for Drop-Out and Standard (2015)								
	STD 1	STD 2	STD 3	STD 4	STD 5	STD 6	STD 7	Total
<i>Fees</i>	1	0	0	1	0	0	0	2
<i>Expulsion</i>	0	0	0	0	0	0	0	0
<i>Illness</i>	28	11	9	9	12	9	13	91
<i>Marriage</i>	0	0	0	1	1	0	0	2
<i>Pregnancy</i>	0	0	0	0	1	1	7	9
<i>Bullying</i>	2	0	2	3	1	0	2	10
<i>Truancy</i>	233	123	132	156	147	125	58	974
<i>Substance Abuse</i>	0	0	2	0	1	3	2	8
<i>Poor Performance</i>	3	0	0	1	0	4	2	10
<i>Parents Abuse</i>	7	3	1	1	3	1	2	18
<i>Corporal Punishment</i>	1	0	1	2	4	0	1	9
<i>Teacher Abuse</i>	0	0	0	0	0	0	0	0
<i>Child Labour</i>	0	0	5	1	1	1	0	8
<i>Religion</i>	0	0	0	0	0	0	0	0
<i>Other</i>	50	49	43	32	39	13	14	240
Total	325	186	195	207	210	157	101	1381

Source: Statistics Botswana 2015

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ v

Yes: Please provide the duration and describe the extent to which it is.

Secondary education runs for five (5) years in Botswana, covering 3 years of Junior Secondary and 2 years of Senior Secondary. Able Parents/Guardians of children enrolled in public schools pay a Cost Sharing Fee amounting to 5% of the cost of books and feeding which is equivalent to \$30.00 per annum. The Government covers all Secondary education costs except uniform, transport and development fees of children of able parents and guardians. However, secondary education in private schools where enrolment is by choice, comes at a cost that is much more expensive.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents)

Laws and Policies

Children's Act 2009

Education Act 1966

Other ratified legally binding UN and UNESCO treaties on the right to education and children's rights.

Revised National Policy on Education 1994

National Orphan and Vulnerable Children Care Policy

Poverty Eradication Assistance

Botswana Vision 2016

Botswana Vision 2036

Poverty Eradication Programme

Costs coverage

Direct and indirect costs for secondary education are the responsibility of Government, Parents and guardians who do not have the means to pay for indirect costs like uniform, transport and cost sharing (compulsory levy), are assisted through government social upliftment programmes.

☐

No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐

Yes

☒ v

No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

Even though Botswana ensures universal access to 3 years Junior Secondary Education as part of the 10 year basic education, enforcement of compulsory education is not yet enacted though implied in the Children's Act for 2009. Average entry age for Junior Secondary School is 15 – 19 years.

Entry into Senior Secondary Education is selective, only learners who have passed Junior Secondary Examinations are admitted to Senior Secondary Education. Senior Secondary education is free. Average entry age for Senior Secondary School is 16 – 21 years.

Secondary School Gross and Net Enrolment Ratios (GER and NER) by Year

Year	GER (13 - 17 Years) %	NER (13 - 17 Years) %	GER (14 - 18 Years) %	NER (14 - 18 Years) %
2002	77.3	58.8	78.3	66.9
2003	77.2	60	78.1	67.7
2004	77.6	60.1	78.3	68.1
2005	77.8	61.1	78.2	68.3
2006	79.6	62.2	79.9	70.5
2007	81.6	63.2	81.7	71
2008	84.1	65.6	83.9	73.2
2009	84.1	0	83.7	0
2010	0	0	0	0
2011	84.3	64.7	84.1	0
2012	81.2	64.2	81	70.7
2013	81.1	64.1	80.9	70
2014	87.6	69.9	87.4	75.1
2015	88.4	71.3	88.6	75.8

Source: Statistics Botswana 2015

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- High students - teacher ratio of 1: 45.
- School dropout and retention challenges.
- Deterioration of morals of some teachers and students.
- Inadequate parental support.
- Inadequate facilities and infrastructure.
- Vandalism of school infrastructures.

Number of Secondary Drop-Outs by level per Year (2005 -2015)

Number of Secondary School Drop-Out by Form (Both Sexes)								
	Form 1	Form 2	Form 3	Form 4	Form 5	Form 6	SPED	Total
<i>Fees</i>	5	5	31	50	45	1	1	138
<i>Expulsion</i>	1	3	2	3	4	0	0	13
<i>Illness</i>	39	48	49	24	62	0	4	226
<i>Marriage</i>	0	0	0	1	0	0	0	1
<i>Pregnancy</i>	49	101	209	230	223	0	1	813
<i>Bullying</i>	9	8	9	0	0	0	0	26
<i>Truancy</i>	506	496	410	148	124	0	0	1684
<i>Substance Abuse</i>	2	1	4	1	4	0	0	12
<i>Poor Performance</i>	0	5	4	0	0	0	0	9
<i>Parents Abuse</i>	0	0	1	0	0	0	0	1
<i>Corporal Punishment</i>	0	0	0	0	0	0	0	0
<i>Teacher Abuse</i>	0	0	0	0	0		0	0
<i>Child Labour</i>	8	20	10	4	1	0	0	43
<i>Religion</i>	0	0	1	0	1	0	0	2
<i>Other</i>	43	49	40	13	14	1	1	161
Total	662	736	770	474	478	2	7	3129

Source: Statistics Botswana 2015

It is worth noting that the statistics cover even private secondary education providers where tuitions are charged, hence there are learners who dropped out of school due to school fees. However, the same learners are then enrolled into public schools so that they can continue with their studies.

Number of Secondary School Drop-Outs by Level and Year

<i>Year</i>	<i>Junior Secocondary</i>	<i>Senior Secondary</i>
<i>2005</i>	<i>2562</i>	<i>935</i>
<i>2006</i>	<i>2516</i>	<i>793</i>
<i>2007</i>	<i>2520</i>	<i>830</i>
<i>2008</i>	<i>2139</i>	<i>799</i>
<i>2009</i>	<i>2620</i>	<i>889</i>
<i>2012</i>	<i>2134</i>	<i>722</i>
<i>2013</i>	<i>1705</i>	<i>759</i>
<i>2014</i>	<i>1944</i>	<i>787</i>
<i>2015</i>	<i>2168</i>	<i>961</i>

Source : Statistics Botswana 2015

However, the government of Botswana has made provisions for readmission following drop-out as well as repetition in the event of poor performance.

The total number of repeaters in 2015 was 1773 compared to 760 in 2014. Female students who repeated a grade/form were more than their male counterparts. The highest number of repeaters by form was 677 at Form 3 for females compared to the 183 Male repeaters for the same year. Repeaters at form 3 and form 5 are normally students who had not performed well in JCE and BGCSE the previous years. However, the total number of female re-entrants in 2015 constituted 68.2 percent of the total re-entrants. Most of the re-entrants; 25.7 percent, were in Form 4 followed by those in Form 3 and Form 2 with 23.1 and 19.6 percent respectively (Source: Statistics Botswana 2015).

- *Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:*

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions:

Compulsory basic education is ten (10) years. Children complete compulsory education at an average age of 15 years. The employment Act of Botswana (CAP 47:01) established the minimum age for employment at 14 years and forbids employers from engaging children of ages 14 to 18 in jobs that endanger their life or health.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation ¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training

☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

Access to Higher Education Based on Individual Capacity

In Botswana, transition to higher education is based on the learner's ability to meet the set entry requirements based on performance. Applicants are expected to have acquired at least five credits or better in their Botswana General Certificate of Secondary Education (BGCSE) or its equivalent. With the advent of the multiple pathways policy, equal opportunities for access to higher education are availed to both academic and technical and vocational students. For more equity and inclusivity, an affirmative action criterion is used to reach out to minority groups and other vulnerable members of the society. In this case, candidates who scored five (5) points lower than the minimum standard for government sponsorship are supported. This criterion caters for a wide range of constituencies including Orphans and Vulnerable Children (OVC), Rural Area Dwellers (RADs) and students with Special Educational Needs (SEN).

Financial Costs to Receive Higher Education

Government provides sponsorship to all learners who meet the set credit points for awarding sponsorship. To ensure non-discrimination in awarding scholarships, the Tertiary Education Policy of 2008 was implemented to guide the development, coordination, funding and administration of tertiary education in Botswana. Implementation of the policy resulted in improved management, quality assurance and growth of the tertiary education landscape.

In addition to government sponsorship, a number of alternative sources of funding are available through the participation of the private sector, nongovernmental organisations and individual parents. A new funding model is currently being developed to increase participation of all stakeholders to share the costs of funding higher education and increase access.

Progress realized in the provision of higher education

In 2007/8 the government of Botswana acknowledged the role of private sector participation in the provision of tertiary education and extended sponsorship to students enrolled in private tertiary institutions. This has resulted in significant increase in the enrolments from 31129 in 2007/8 to 60,583 in 2015/16 representing 21% transition rate, which far exceeds the 17% target set for 2016. Other developments under the provision of higher education include:

- Establishment of the Human Resource Development Council to guide human resource planning and funding so that it meets the needs of the economy through improved links with industry and private sector.*
- Implementation of guidelines to provide a structured monitoring and evaluation system for public and private tertiary education institutions.*
- Development of a single and integrated bill that will establish universities and tertiary education institutions.*
- Establishment of Botswana Qualifications Authority in August 2013 as an independent entity responsible for maintaining a national credit and qualifications framework and the coordination of the education, training and skills development quality assurance system as well as bringing flexibility*

and mobility of credits locally, regionally and internationally.

- Provision of fourteen Tertiary level programmes by Botswana College of Distance and Open Learning.

Difficulties experienced in accessing higher education

The Government of Botswana passed the Tertiary Education Policy (TEP) in 2008. Among the goals of the TEP is to expand opportunities for more Batswana to participate in tertiary education and thereby enable the country to accelerate development of its human resource and transform into a knowledge society.

This notwithstanding, Botswana like many countries faces the challenge of funding higher education from public sector budget alone. This constitutes a major stumbling block to access to higher education. Other inhibiting factors are largely socio-economic and find expression in our various cultural practices. Inadequate diverse and alternative modes of delivery such as Open and Distance Learning (ODL) also exacerbates the difficulties.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states

Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

One of the goals of the Tertiary Education Policy of 2008 is to achieve a gross enrolment rate (GER) of 17% by 2016 and of 25% by 2026.

In Botswana, transition to higher education is based on the learner’s ability to meet the set entry requirements based on performance. Applicants are expected to have acquired at least five credits or better in their Botswana General Certificate of Secondary Education (BGCSE) or its equivalent. With the advent of the multiple pathways policy, equal opportunities for access to higher education are availed to both academic and technical and vocational students. For more equity and inclusivity, an affirmative action criterion is used to reach out to minority groups and other vulnerable members of the society. In this case, candidates who scored five (5) points lower than the minimum standard for government sponsorship are supported. This criterion caters for a wide range of constituencies including Orphans and Vulnerable Children (OVC), Rural Area Dwellers (RADs) and students with Special Educational Needs (SEN).

Financial Costs to Receive Higher Education

A Tertiary Education Financing Policy and Sponsorship guidelines were developed to ensure that education

and training needs of the country are met. Government provides sponsorship to all learners who meet the set credit points for awarding sponsorship. To ensure non-discrimination in awarding scholarships, the Tertiary Education Policy of 2008 was implemented to guide the development, coordination, funding and administration of tertiary education in Botswana. Implementation of the policy resulted in improved management, quality assurance and growth of the tertiary education landscape.

Similarly, students who meet the requirements for admission into a tertiary institution but do not meet the set credit points for government sponsorship may be sponsored by their parents or the private sector. The private sector plays a significant role in sponsoring school students, research initiatives and needs based scholarships.

In addition to government sponsorship, a number of alternative sources of funding are available through the participation of the private sector, nongovernmental organisations and individual parents. A new funding model is currently being developed to increase participation of all stakeholders to share the costs of funding higher education and increase access.

However, the cost of higher education is very high. Despite efforts by government, parents, the private sector and philanthropists, making tertiary education accessible to all remains a challenge.

Tertiary Education Enrolment by Type of Institution and Gender (2017/2018)				
Type of Institution	Female	Male	Total	% Female
Other Private Institutions	5165	3297	8469	61.0
Private Universities	6360	4939	11299	56.3
Colleges of Education	753	320	1073	70.2
Institutes of Health Sciences	840	488	1328	63.3
Technical Colleges	976	1834	2810	34.7
Public Institutions	4075	2437	6512	62.6
Public Universities	12977	8989	21966	59.1
Total	31146	22304	53450	58.3
Brigades	2503	3290	5793	43.2
Grand Total	33649	25594	59243	56.8

Source: Tertiary Education Institutions 2018

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications

Other: _____

- Please elaborate further on the measures taken:

Efforts made to establish a system of continuing education

Through the Inclusive Education Policy Goal 3, government is committed to ensuring that Out of school programmes are developed and strengthened to ensure inclusion of children, young people and adults whose educational needs cannot be met through formal education. This alternative means to formal education is provided in two different levels as indicated below:

Out Of School Education Training (OSET) – The programme provides opportunities for lifelong learning for all through non formal education programmes. The main purpose is to provide literacy and skills training for both children and adults who due to any particular reason, could not access education through formal means. The programme is in three different levels:

Out of School Education for Children (OSEC) - The program is intended to improve access to basic education, by out of school children aged 6-19 years who either dropped out school or have never entered the school system.

Adult Basic Education - The programme provides functional literacy and basic education to adults and out of school youth with an equivalence of primary education. As a result of the developments that have been going on in Adult Education, Botswana's national literacy rate was calculated at 90% by 2014. The literacy rate by gender disaggregated data indicated a higher rate among females (88.7%) against 91% of male literacy.

% Literacy Rates by Year, Age and Sex (1991-2014)

Year	10-70			12-70			15-65		
	Male	Female	Total	Male	Female	Total	Male	Female	Total
1981	32	36	34	..	..	..	..	..	..
1991	..	..	..	..	..	..	66.8	67.7	67.3
1993	..	..	..	..	..	..	66.9	70.3	68.9
2001	65	69.8	67.5	..	..	..	69.9	73.6	71.8
2003	75.3	77.9	76.6	79.6	81.8	80.9	80.4	81.8	81.2
2010	85.1	86.5	85.3	87.4	89.2	88.4	82.3	83.8	83.2
2013	82.6	86.4	84.6	83.8	85.9	84.9	84.1	87.5	85.9
2014	87.5	87.3	86.5	87.3	88.8	88.1	88.7	91	90

.... Data not available

Source: Statistics Botswana 2016

Skills development – The programme is meant to improve the livelihoods of its learners through skills training where they are equipped with basketry, paper masher, welding and gardening skills. At the end of their training, learners are assessed for purposes of accreditation by Botswana Qualifications Authority. They are further assisted to set up income generating projects using the skills they acquired in their training.

Graduates from these programmes are able, through flexible learning pathways, to pursue tertiary education programmes when they perform to the required standard.

The Department for Skills Development in the Ministry of Employment, Labour Productivity and Skills Development. This department, together with the Department of Teacher Training and Technical Education provide technical and vocational education and training free of charge to youth and adults. Recognition of Prior Learning has been adopted for some of the programmes, prospective trainees and artisans are evaluated and awarded appropriate credits or qualifications for their skills and knowledge.

Lifelong Learning Opportunities - Botswana Open University (BOU) provides opportunities for Lifelong Learning for all through distance and open learning approaches. Its main purpose is to provide an alternative means for students who could not complete their education through formal means due to any particular challenge. Programmes offered through this mode range from secondary to higher Education levels.

Measures implemented to ensure equitable access to continuing education

- Provision of OSET and ODL programmes to ensure inclusion of children, young people and adults whose educational needs cannot be met through formal education.
- Construction of 34 Community Learning Centres to increase access to lifelong learning for all.
- Construction of 2 Lifelong Learning Centres to provide training for out of school learners and facilitators.
- Design of a retooling programme for Adult Educators.
- Development of a draft policy framework for out of school education.
- Development of a draft curriculum framework for out of school education.
- Action Research with street children is on-going with Stepping Stones and Botswana Council of Churches in Old Naledi, Gaborone and Jwaneng
- Training of educators on-going in Matsha Lifelong Learning Centre in Kang.

The Use of ICT to improve Lifelong Learning

Through the Department of ICT & Media Service (ICT&MS) the government of Botswana has ensured a continuous provision of lifelong learning opportunities to improve literacy skills of young people and adults. As a result, different programs as shown below have been developed and produced within the Educational Broadcasting Division to promote lifelong learning in Botswana:

Go bala le go kwala

The literal translation of the name of the project is, 'Reading and writing', targets Out of school children, Youth and adults residing in areas with no access to educational facilities. In addition to functional literacy skills, beneficiaries are equipped with skills development and entrepreneurship skills. The programme also provides them with a platform for sharing ideas and educating each other about the acquired skills and how to marketing their products.

Education forum

This is a national programme with the purpose of disseminating information and raising awareness about different education policies and programs program. Educational Programmes and initiatives shared include those from government and from other stakeholders with an interest in the development of education.

A o itse gore

The literal translation for the programme name is 'Do you know that...?' and is an awareness raising programme that informs people about adult education programs offered at national level such as the:

- Out of School Education for Children
- Adult Basic Programme
- Life Skills Programme

Beyond School

This is an Educational Television Programme which airs different career professions in order to help schools leavers to make informed careers choices.

Challenges Experienced in Provision of Adult Education and Lifelong Learning

- Lack of transport to reach children in difficult to reach areas.
- Lack of a feeding programme for the children.
- Lack of a specialised assessment for ABEP learners
 - o The programme relies on part-time educators as per RNPE Rec 75c. However, it is unable to attract qualified teachers and others on a part-time basis because of low remuneration
 - o Inadequate transport for programme supervision and monitoring

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

In order to improve the quality of education across all levels of education and to ensure equivalence in all educational institutions, Government has come up with the following initiatives:

- *Standardization of the Curriculum for primary and secondary levels of education and setting targets for schools to achieve as a way of ensuring provision of quality education in schools.*
- *Monitoring of academic performance in all the different levels of education to ensure the quality of teaching and learning.*
- *Recognizing and rewarding schools and learners with outstanding performance at the Regional and National Excellence Awards.*
- *Adaptation of the lower primary curriculum to multi-grade curriculum to facilitate the teaching of mixed ability groups.*
- *Dissemination of the curriculum guidelines and teacher’s instructional manual with particular attention to teachers from designated multi-grade schools to explore the usability of the materials.*
- *Establishment of Botswana Qualifications Authority to set and monitor education standards in the country with particular focus to institutions of higher learning.*
- *Assessment and accreditation of Programmes offered at institutions of higher learning by Botswana Qualifications Authority to ensure quality of the programmes offered.*
- *Establishment of Botswana Education Television to provide television based support programmes to Junior Secondary students in Science, Mathematics and Music.*
- *Broadcasting of ‘Beyond the School Programme’ to provide career guidance to youth and help them to develop their entrepreneurship and social skills.*
- *Implementation of outcome based curriculum and multiple pathways*

Conditions relating to the quality of education

- *Infrastructural capacity is continuously improved through the backlog eradication programme for schools to ensure that all learners are sheltered from harsh weather conditions.*
- *Learners and teachers are provided with course, supplementary, library and reference textbooks to facilitate effective teaching and learning.*
- *Production of teaching and learning support materials for through the Teaching Aid Production Division.*

Provision of child friendly learning environments

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☒ Measures taken to increase women in leadership positions in education

Other:

Government has committed to improving all areas relating to the quality of education including upgrading the minimum qualifications of teachers from Certificate to Diploma and improving the working conditions of the teaching profession. Government through the Ministry of Tertiary Education, Research, Science and Technology is providing pre-service training of teachers as well as in-service through the Ministry of Basic Education.

In-Service Training

Government has further committed to improving the quality of teachers especially from primary by upgrading their qualifications from Primary Teachers Certificate to Diploma level as per the table below. In order for a coordinated training of teachers, the In-service Training Division has been established to facilitate continuous training of teachers so that they remain relevant to the teaching profession. Training is guided by a training plan to avoid any form of discrimination.

Primary Teacher Qualifications

<i>Qualification</i>	<i>Number</i>	<i>%</i>
<i>ETC</i>	<i>12</i>	<i>0.1</i>
<i>PL</i>	<i>4</i>	<i>0.0</i>
<i>PH</i>	<i>2</i>	<i>0.0</i>
<i>PTC</i>	<i>575</i>	<i>4.0</i>
<i>PTC + Cert</i>	<i>138</i>	<i>0.9</i>
<i>Diploma Primary</i>	<i>9921</i>	<i>68.3</i>
<i>B.Ed Primary</i>	<i>1765</i>	<i>12.1</i>
<i>B.Ed Sped</i>	<i>251</i>	<i>1.7</i>
<i>B-Ed Management</i>	<i>220</i>	<i>1.5</i>
<i>M-Ed Primary</i>	<i>69</i>	<i>0.5</i>
<i>Mphil/PhD</i>	<i>18</i>	<i>0.1</i>
<i>Other</i>	<i>1373</i>	<i>9.4</i>
<i>Unqualified</i>	<i>185</i>	<i>1.3</i>
<i>Total</i>	<i>14533</i>	<i>100</i>

Source: Statistics Botswana 2015

The upgrading of teachers' qualifications is not limited to primary school teachers only. Secondary school teachers' qualifications are also upgraded from Diploma to Degree levels, refer to the table below for detail. As for tertiary education, teachers' qualifications are upgraded from Degree to Master' Degree levels.

Continuing Professional Development of Teachers

Short capacity building programmes for teachers are also conducted regularly to address any gap identified at national, regional and school levels. The Staff Development Team is responsible for continuing professional development of teachers at school level.

ICT Training for Teachers

ICT&MS through Mochudi Media Centre contributes significantly to teacher development through a number of in service programmes as mentioned below:

- Computer literacy essentials which uses training manuals as its Mode of delivery. The programme covers:
 - o MMC Competency Based Modularized Training Packages of 30 hours each which has been benchmarked against UNESCO ICT framework for teachers.
 - o Microsoft digital literacy curriculum which addresses issues universal of access to education
- ICT integration covering :
 - o MS partners in learning (ETA- Educational transformation Agreement)
 - o MMC ICT integration Module developed within ICTMS
 - o Audio Visual Technologies
 - o MMC basic camera techniques
 - o MMC Basic Video production

The above mentioned programmes are offered to teachers from different regions throughout the year.

- Please briefly elaborate further on the measures taken:

Conditions of Service for the Teaching Profession

Government through the Teaching Service Management sets and maintains working conditions for the teaching profession. As a result, the working conditions of teachers are reasonably attractive and competitive, as majority of teachers have not sought alternative employment elsewhere except for a few who have progressed into the Public Service in pursuit of higher remunerations. There is still a cohort of expatriate teachers who have secured jobs in the Teaching Service because of the attractiveness of the working conditions of teachers in Botswana.

Some of the conditions that attract teachers into the teaching service include:

- Regular review of teacher's working conditions and remuneration to ensure their competitiveness with others in the region; the last review was to improve the levels of operations for the teaching profession, effective July 2013.
- Provision of institutional houses for teachers with subsidized rentals. Teachers serving in areas that are far from services are provided with free accommodation as an incentive for serving in such areas.
- In areas where inadequate accommodation for teachers is experienced, the ministry secures housing units from other providers like Botswana Housing Corporation to address shortage of teachers accommodation across all the levels of education
- Funds have been allocated for maintenance and refurbishment of schools and teachers houses across all levels of education.
- Teachers serving in the remote areas of the country are paid Remote Area Settlement Allowance to boost their morale
- Use of transfer policy to regulate teachers' transfers and ensure that teachers' have equal opportunity to serve in all parts of the country.
- The procedures for recruitment and selection of teachers are continuously improved to ensure fairness.
- Botswana's Teacher/Pupils' Ration is 1:40 but class size has further been reduced to response to the COVID-19 protocols.
- There is an adequate supply of teachers in all subjects except for Chemistry, Physics and

Business Studies.

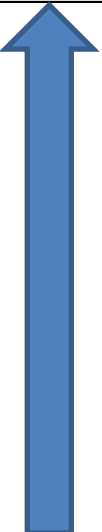
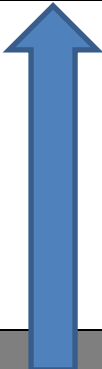
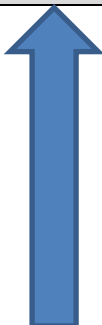
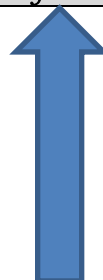
- Teachers participate in different forums of national education development and policy dialogue and in curriculum and material development, setting standards and quality management mechanisms.

Average Salaries of Teachers' (For Each Level of Education) As Compared To The Salaries Of (Other) Civil Servants

The entry point for public service and primary and secondary school teachers is C4 salary scale of P93, 667.00 per annum for Diploma holders and C3 salary scale of P109, 764.00 per annum for degree holders. Following entry into the system, primary school teachers can progress up to D2 salary scale of P321, 012.00, secondary school teachers progress to D1 salary scale of P368, 544.00 per annum while public servants with the same entry qualification, progress to F0 salary scale of P681, 888.00. College lecturers on the other hand enter the system at C3 salary scale of P10, 764.00 per annum and progress to E2 salary scale of P403, 776.00 per annum, refer to table 14 below. Salaries are constantly reviewed based on the following factors:

- Organization and Methods Review of the entire Public Service Sector.
- Job Evaluation Process.
- Public Service Salary Review Commissions.
- Annual Salary Cost of Living Adjustments.
- Parallel Progression Exercise.
- Scarce Skills Policy.
- Levels of Operation for the Teaching Profession.

Teachers' Salaries in Comparison with Civil Service Salaries

Grades	Salary Per Annum	Public Service Progression			
F0	681,888.00				
F1	598,176.00				
F2	524,712.00				
E1	460,296.00				
E2	403,776.00				
D1	368,544.00				
D2	321,012.00				
D3	279,648.00				
D4	243,684.00				
C1	197,892.00				
C2	160,548.00				
C3	130,296.00				
C4	106,596.00				

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐	Yes: Has your government addressed this issue?
☐	Yes
☐	No
☒	No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

- ☒ Curriculum includes human rights education
- ☒ Educational and/or extracurricular activities are organized on human rights education
- Other:

The government is committed to upholding human rights as evidenced by chapter II of the Constitution, 'Protection of Fundamental Rights and Freedoms of the Individual'. As a result of this commitment, national policies and programmes are continuously reviewed to ensure their alignment to promotion of human rights. Education initiatives put in place to this effect include the mainstreaming of human rights education into the curriculum to ensure learners acquire knowledge and skills needed to promote understanding and appreciation of cultural diversity and a culture of peace and non-violence.

Further to the mainstreaming of human rights into the curriculum, Botswana is a party to different international human rights protocols as detailed in Table 15 below.

Adherence to Human Rights Protocols

International Convention/ Agreement	Focus	Adherence Date	Status
Framework for Action – Education 2030	It calls for: Provision of inclusive and equitable quality education and promotion of lifelong learning opportunities for all' with focus on – Completion of free, equitable and quality primary and secondary education. – Access to quality early childhood development, care and pre-primary education. – Access to affordable and quality TVET, including university. – Increase in the number of youth and adults with relevant skills for employment, decent work and entrepreneurship. – Elimination of gender disparities in education. – Achievement of literacy and numeracy skills by all youth and adults. – Acquisition of knowledge and skills necessary for promotion of sustainable development.	4.11.2015	Addressing all the unfinished EFA business as well as current and future education challenges from 2016 to 2030.
Convention on the Rights of the Child (CRC).	It calls for: – The right to education – The right to rest and leisure – The right of protection from economic	14.3.1995	Domesticated through the Children's Act of 2009.

	exploitation		
<i>Convention on the Rights of Persons with Disabilities</i>	<i>It calls for the promotion, protection and assurance of the full and equal enjoyment of all human rights and fundamental freedoms by all persons with disabilities, and to promote respect for their inherent dignity</i>		<i>Domesticated through the Inclusive Education Policy.</i>
<i>The Salamanca Statement and Framework for Action (1994)</i>	<i>It calls for the provision of Inclusive Education i.e. with special reference to the education of children with special needs in regular schools.</i>	N/A	<i>Domesticated through the Inclusive Education Policy.</i>
<i>SADC Protocol on Education.</i>	<i>It calls for:</i> <i>– The provision of high quality and relevant education</i> <i>– Improved access to education and training</i> <i>– Reduction of inequalities in the acquisition of education and training</i> <i>– The achievement of universal literacy and numeracy</i> <i>– Reduction in the cost of education and training</i>	8.09. 1997	<i>Mainstreamed into educational policies and programmes.</i>
<i>ILO Convention 138 (Minimum Age Convention).</i>	<i>It calls for the fixing of the minimum age into employment (Ratified)</i>	1997	<i>Botswana ratified and set the Minimum Age at 15 (Employment Act CAP 47.01 Article 61 and 105)</i> <i>As a result, the Act prohibits employment of children under 15 years but allows children between 14 and 18 years who are not attending school to do light work (approved by the Commissioner)</i>
<i>ILO Convention 182 (Worst Forms of Child Labour Convention),</i>	<i>It calls for the elimination of child labour and its worst forms (CSEC, CUBAC and CT).</i>	2000	<i>Botswana ratified and prohibits children from working at night, working under ground and engaging in hazardous activities (Employment Act CAP 47.01 Article 106 –109)</i>
<i>Universal Declaration of Human Rights.</i>	<i>It calls for:</i> <i>– The recognition of the inherent dignity and equal rights of all members of the human family</i> <i>– The right to life, rest and leisure</i> <i>– Protection of the fundamental human rights principles, such as equality and non-discrimination.</i> <i>– Promotion of a universal culture of human rights and application of human rights in daily life.</i>	29.03.1968	<i>Forms part of Botswana's constitution (Chapter II of the constitution)</i> <i>Mainstreamed into educational policies and programmes, including the school curriculum.</i>
<i>The International Convention on the Elimination of all Forms of Discrimination Against Women</i>	<i>It calls for the elimination of all forms of gender-based violence and other forms of discrimination that inhibits women and girls the ability to enjoy rights and freedoms on the basis of equality with men.</i>	13.08.1996	<i>Botswana is a signatory and has domesticated through the National Gender Policy. A full department has been established to coordinate implementation of gender activities</i>

<i>The International Covenant on Civil and Political Rights</i>	<i>It calls for the right to life and prohibits torture and other cruel, inhuman or degrading treatment or punishment.</i>	16.12.1966	Forms part of Botswana's constitution (Chapter II of the constitution)
<i>The International Covenant on the Elimination of All Forms of Racial Discrimination</i>	<i>It calls for the eliminating racial discrimination in all its forms and manifestations, and to prevent and combat racist doctrines and practices in order to promote understanding between races and to build an international community free from all forms of racial segregation and racial discrimination.</i>	20.02.1974	Forms part of Botswana's constitution (Chapter II of the constitution)

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

☒ Yes ☐ No

- Please provide a brief description:

The Education Act CAPS 58:01 stands as a regulatory framework for the establishment and provision of education in the country including private educational providers. The Act declares the quality from the onset by defining what constitute a school to avoid any form of misinterpretation. Section 13 – 24, sets out clear Registration and Control of school with particular attention to the following:

- Compulsory registration of schools and certificate issued.*
- Correct classification and nomenclature of schools.*
- Gazetting of all schools to give the public the opportunity to oppose or object to the registration of any school due to any form of alluded or implied malpractice.*
- Employment of qualified and appropriate personnel to teach at or run schools.*
- Implementation of health and safety regulations to which every institution should conform.*
- Provision of appropriate curriculum approved by the Permanent Secretary of Education & Skills Development.*
- Maintenance of records indicating enrolments and daily attendance to monitor access and equity.*
- Maintenance of records of up-to-date revenue and expenditure by schools, including money paid by students, grants, and donations.*
- Inspection and monitoring of schools to ensure compliance to educational standards and schools may be closed if they are found not to conform to the minimum standards.*
- Maintenance of a sound governance structure for schools.*

As a result of these measures, there are 116 basic education schools that are privately owned of which 72 are primary schools and 44 are secondary schools. At tertiary level there are 22 private institutions which include universities, colleges, graduate schools and brigades.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

☒ Yes ☐ No

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The Education Act and Tertiary Education Act mentioned in the previous section have subsidiary legislations which guarantee non-discrimination and relevance of the curriculum offered. In addition, the Botswana Qualifications Authority regulates the standard of tertiary education across the entire spectrum, in order to promote the development of an integrated system that is accessible to all.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

☒ Yes ☐ No

Education Act CAP 58:01 Section 22 gives direction to the right to freedom of religion and ensures that no form of religion is forced on learners. It outlines the following to make provision for the right to provision of religious instruction.

- Any child may be excused from a religious instruction/activity within a school.
- Any minister of religion may give regular instruction at any school, provided proper arrangement was made in advance with the school.
- A child enrolled at any school may be granted permission to attend a religious activity as the parents may so desire.
- A parent of any child in attendance at any school may request in writing to the principal of school that their child be wholly or partly excused from attending religious worship or instruction practiced in that particular school.

The education system promotes the value of BOTHO through curriculum subjects such as Moral education, Social Studies and Guidance and Counselling. The main idea is to instil a culture of tolerance amongst learners as well as understanding and appreciation of diversity and respect for the rights of others. The Adopt A School Programme has allowed interaction between schools and Non-Governmental Organizations and churches. The programme among others, instil a culture of peace and tolerance amongst people.

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☒ Curriculum is adapted to national minority needs
- ☒ Teachers are trained to adapt to national minority needs
- Other:

- Please provide a brief description of the provisions:

Protection of the Rights of Minorities to Carry Out their own Educational Activities

In Botswana everyone is allowed to open up a school irrespective of their differences. Schools are allowed to offer both academic concepts that children learn in the classroom as well as cultural transmission hence culture is a curriculum topic under Social Studies. As a result, different cultures existing in the country are incorporated into the curriculum for learners to understand and appreciate the country's cultural diversity. Even outside the education system, societies are allowed to reproduce their culture by educating their children on their cultural skills, values, norms and attitudes. To further promote cultural transmission and preservation, different communities organize and celebrate their cultural days.

Different cultural groups have different cultural beliefs and practices. As a result, the amended Recommendation 15 and 18 of the Revised National Policy on Education of 2004 calls for the sensitization of teachers to cultural differences as a strategy to help them appreciate and be sensitive to cultural differences.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

Educational Standards in Educational Institutions Run by Minorities

The Education Act CAP 58:01 Section 13 allows any individual, organization or church to open schools and provide educational services to the nation either for free or at a cost. However, measures have been put in place to ensure that any facility that has been established to provide educational services meets the standards for schools as set in CAP 58:01 Section 13 – 27.

The Use and Teaching of First Languages in Education

Although the use of mother tongue instruction is a positive development towards enforcing the principles of non-discrimination in education, Botswana is not yet ready for the full implementation of mother tongue instruction which involves the use of other non-tswana languages as mediums of instruction in Botswana schools. In Botswana, mother tongue differs from one cultural group to another. As a result some languages spoken in the country are not taught nor catered for in the curriculum. Setswana and English are the only two official languages in Botswana, hence Setswana is taught and used as a medium of instruction at standard 1 and later offered as a curriculum subject from standard 2.

There are practical problems associated with the teaching and using of non-tswana languages as mediums of instruction in Botswana schools. These include their implications on teacher training and placement. Although the current teacher training curriculum does not cover training in other languages except English and Setswana, teachers in Botswana are expected to teach in any area of the country. Therefore, teaching and using of non-tswana languages as mediums of instruction would suggest the deployment and redeployment of the current teaching force according to their areas of origin, a system that cannot be sustained with the teacher training output and the teaching force in the field.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks

recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG 4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Botswana is a signatory to the 1951 UN Convention Relating to the Status of Refugees and the 1967 Protocol amending this Convention and the 1969 African Convention. The country's Recognition and Control Act of 1968 provides for the granting of asylum or refugee status and other aspects pertaining to their protection.

Botswana currently hosts refugees and asylum-seekers from Namibia, Zimbabwe the Democratic Republic of the Congo, Somalia and other countries in Africa. The country's legal and policy frameworks guarantee free quality education to these refugees and migrants.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☐ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☒ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programmes
- ☐ Financial support
- Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

☒ Challenges related to equitable access and inclusion in education (such as poverty and

socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Challenges and Obstacles Experienced in the Implementation of the Instrument and the Removal of Obstacles Encountered

- Education is not compulsory as such parents who do not value education and live in far to reach areas may choose not to enroll their children into the education system.
- Inadequate parental support.
- Inadequate understanding of policies governing education.
- Mushrooming of un-gazetted settlements where schools cannot be constructed.
- Inadequate infrastructure to enable enforcement of compulsory education.
- Late assessment of learners with disability.
- Inadequate vocational training for learners with disability.
- High students teacher ratio (1:40)
- The use of specialized labs as base classrooms which then comprises the teaching and learning of science and other practical subjects.

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- Inadequate infrastructure to enable enforcement of compulsory education.
- Late assessment of learners with disability.
- Inadequate vocational training for learners with disability.
- High students teacher ratio (1:40)
- The use of specialized labs as base classrooms which then comprises the teaching and learning of science and other practical subjects.

The main issues that need to be addressed for promoting further the implementation of equality of educational opportunities

- Expansion of schools.
- Review of the Education Act to enable enforcement of compulsory education.
- Provision of residential counsellor or Psychologist in schools to support learners in need of psycho-social support.
- Increase assessment centres for early assessment of learners.

✓ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- High dropout rates and retention challenges, most specifically for learners in remote areas.
- Long distances to schools.
- Delays in the enforcement of compulsory education.
- Acute shortage of specialist teachers and support staff in special units and schools.
- Overstay of learners with intellectual disability in special schools.
- Inadequate understanding of policies governing education.
- Lack of transport to follow children with poor attendance and those who dropped out of school.
- Inadequate parental support due to religious and cultural believes that are against education.
- Lack of transport to reach some of the difficult to reach children.
- Lack of a specialised assessment for learners in the Adult Basic Education Programme.
 - o The programme relies on part-time educators as per RNPE Rec 75c. However, it is unable to attract qualified teachers and others on a part-time basis because of low

remuneration.

- Inadequate transport resources for programme supervision and monitoring.
- High students - teacher ratio of 1: 40 at primary and 1: 45 at secondary.
- Deterioration of morals of some teachers and students.
- Vandalism of school infrastructure, especially at secondary.

- ☒ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

Budgetary constraints have had enormous repercussions on the quality of education. Interventions intended to address challenges related to aging school infrastructure and obsolete equipment, deteriorating learning conditions and outdated teaching methods, inadequate data collection and monitoring systems and obsolete legal and policy instruments have been frustrated by budgetary constraints.

☐ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

It is clear that the methods used to remove obstacles encountered in the promotion of educational opportunities are to a large extent effective especially that they are based under the umbrella of the Constitution of Botswana which promotes the 'Protection of Fundamental Rights and Freedoms of the Individual' including 'Protection from Discrimination on the grounds of race, place of origin, political opinions, colour, creed or sex, but subject for the rights and freedoms of others'. As a result of the effectiveness of the strategies employed, Botswana has managed to maintain high access rates in all the levels of education.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☒ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education

✓ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

✓ Other:

Though Botswana is not a signatory to the Convention and Recommendations Against Discrimination in Education, promotion of human rights is enshrined in the Constitution of Botswana which guides the development of other national policies and programmes. As a result, there has been awareness raising on issues relating to the promotion of human rights coordinated by different government ministries depending on their mandate. In addition, Non-Governmental Organizations such as below have done extensive work to ensure that human rights, including the principles of equality, justice and peace are respected by all:

1. ***Ditshwanelo – The Botswana Centre for Human Rights*** which was established in 1993, has been dealing with all aspects of human rights particularly with provision of paralegal services to those earning less than the minimum wage and advocating for changes in laws, policies and practices, and to raise public awareness on rights and responsibilities.
2. ***Botswana Network on Ethics, Law and HIV/AIDS*** which was established in 2002, is responsible for promotion of a just and inclusive environment that contributes to the quality of life for people affected by HIV and AIDS through advocacy, capacity building and a network of individuals and organizations
3. ***Emang Basadi*** is Botswana based women's human rights organization formally established in 1986. The Organization's main goal is to mobilize women in Botswana to develop action oriented strategies that can change their social, political, economic and legal positions.

In order to draw attention of various authorities of the country and raise public awareness of the principles of non-discrimination and equality of educational opportunities enshrined in the Convention and Recommendation, and their national dissemination, NGO's above together with others interested in the promotion of human rights raise stakeholder awareness and that of the general public through lobbying, advocacy and capacity building, legal aid and counselling services for the empowerment of disadvantaged group. Some of the activities they do include:

- *Conducting campaigns on children's rights through a specific Children's Rights Programme;*
- *Conducting researches on various problems related to increasing the ability for women and girls in Botswana to access various government services;*
- *Conducting campaigns towards greater equality and the removal of all cultural and legal barriers which hinder the advancement of women and girls;*
- *Conducting some awareness raising campaigns to increase awareness among women and the public in general about human rights violation and gender equality;*
- *Mobilizing women and girls to develop action-oriented strategies that will help change their social, political, economic and legal position;*
- *Mainstreaming gender in development, including in educational policies and programmes.*

Provisions made to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence

- *Implementation of the Child Friendly School's Programme and the mainstreaming of Social Values into education policies and programmes to ensure schools are safe places of learning, free of abuse and use of abusive language.*
- *Production of gender stories by learners for purposes of educating other learner and the public on gender based violence.*
- *Non-governmental organizations have partnerships with schools through Adopt a School Programme and teach students and teachers on gender based violence.*
- *All schools are mandated to report on equity and access to education.*
- *Inclusive Education Policy has been rolled to schools to implement.*

